

		Assignee's counsel is ordered to give notice of this ruling.
13.	<i>Claim of De Leon</i> <i>2021-01209589</i>	Before the court is the motion of petitioner People of the State of California (Petitioner) for Default and Default Judgment of Forfeiture regarding seized property in the form of \$34,068 in United States Currency. The court will not post a tentative ruling on the merits. Instead, counsel should appear to discuss the applicability and impact of Code of Civil Procedure section 583.310 et seq. Section 583.310 provides, "An action shall be brought to trial within five years after the action is commenced against the defendant." Section 583.360 provides, "(a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. [¶] (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." As these statutes indicate, the court is required to dismiss an action if it is not brought to trial within five years of commencement unless an extension, excuse, or tolling established by statute extends the five-year period. The burden is on the plaintiff or petitioner to establish through admissible evidence some statutorily recognized basis for extending or tolling the five-year period. The court may not create any additional excuses beyond those established by the governing statutes. Civil forfeiture proceedings are civil in nature and generally governed by the Code of Civil Procedure unless inconsistent with the forfeiture statutes. Indeed, Health and Safety Code section 11488.5, subdivision (c)(3), provides, "The provisions of the Code of Civil Procedure shall apply to proceedings under this chapter unless otherwise inconsistent with the provisions or procedures set forth in this chapter. However, in proceedings under this chapter, there shall be no joinder of actions, coordination of actions, except for forfeiture proceedings, or cross-complaints, and the issues shall be limited strictly to the questions related to this chapter." Health and Safety Code section 11488.4, subdivision (a)(1), provides, "A petition under this section is an unlimited civil case, regardless of the value of the seized property." Accordingly, it would appear the five-year mandatory dismissal rule established by Code of Civil Procedure section 583.310 et seq. applies to civil forfeiture cases such as this one, and requires them to be brought to trial within five years of commencement or be subject to mandatory

		dismissal. Here, Petitioner filed its petition to commence this action on July 9, 2021, and therefore more than five years have elapsed since commencement without this action being brought to trial. The court has raised this issue with Petitioner multiple times, and Petitioner has said they would bring a motion to address it. The current motion, however, does not appear to address the five-year issue. Petitioner previously has indicated they would like a conviction in the underlying criminal case, but one still has not been obtained and Petitioner nonetheless brought this action. Indeed, multiple forfeiture statutes, including the one under which this motion is brought, provide that a conviction is not required. Accordingly, Petitioner should be prepared to address these issues at the time of the hearing.
14.	<i>Seton Hall University vs. Spitz</i> 2026-01555640	Before the court are the following motions filed by respondent Eric Spitz (Respondent): (1) motion to quash deposition subpoena, or in the alternative for a protective order and to vacate or modify the June 1, 2026 order; and (2) motion to vacate the May 29, 2026 monetary sanctions order. For the reasons set forth below, both motions are DENIED. <u>Motion No. 1: Motion to Quash (ROA 150)</u> Code of Civil Procedure section 1987.1 provides “upon motion reasonably made” by a party or witness, a court “may make an order quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a).) Respondent seeks to quash the deposition subpoena served on Respondent that is the subject of this action (Subpoena), or alternatively, he seeks a protective order barring compelled disclosure of Respondent’s confidential sources, unpublished newsgathering materials, or journalistic work product, on the grounds Respondent is a newsperson and the subpoena seeks materials protected by the California Shield Law and the First Amendment reporter’s privilege. As an initial matter, as petitioner Seton Hall University (Petitioner) points out, the motion is unaccompanied by a separate statement. California Rules of Court, rule 3.1345(a)(5) requires a separate statement to be filed for any motion to quash the production of documents at a deposition. Therefore, to the extent Respondent seeks to quash the twenty-four requests for production of